

First of all, the prosecution would like to discuss the question raised by the President of the Tribunal, Judge Anderson, at the session of 9 June. At that session, Judge Anderson pointed out that:¹

The Control Council Law No. 10, Article II, is divided into war crimes, crimes against peace, and crimes against humanity; with respect to crimes against humanity, it says atrocities or atrocities and offenses against any civilian population.

And thereafter, he asked the prosecution to state:

what significance you attach to the difference in the language, that is, in the one instance persons and property, and in the other, civilian population.

He also asked:

to what extent Count Three is based on subsection (c), if at all, as a separate and substantive offense,

If I understand the first question rightly, it calls upon the prosecution to state what, if any, significance we attach to the fact that the definition of "war crimes" under Control Council Law No. 10, commences with the phrase "atrocities or offenses against persons or property" whereas the definition of "crimes against humanity" refers to "atrocities and offenses . . . against any civilian population".

In fact, the prosecution does not believe that any very special or particular significance is to be attached to the words "persons or property" in the definition of war crimes, inasmuch as they are merely used in a clause which is meant to establish that "war crimes" as embodied in Law No. 10 are in general such crimes as constitute violations of the laws or customs of war. And war crimes -- or violations of the laws and customs of war, whichever you want to call them -- include both offenses against a single individual, such as the killing of an unarmed and helpless prisoner of war, and general practices and policies which may affect all or a large part of the civilian population of an occupied territory. The Hague Rules themselves reflect the

1. Tr. p. 12073